

IN THE COURT OF APPEALS OF THE STATE OF OREGON

STATE OF OREGON,

Washington County

Circuit

Plaintiff-Respondent,

v.

Court No.

BARRY TRENELL WASHINGTON,

24CR49041

Defendant-Appellant.

CA A187769

CORRECTED APPELLANT'S SUPPLEMENTAL PRO SE BRIEF

This supplemental pro se brief is submitted under ORAP 5.92 to supplement, not replace, the opening brief filed by counsel. Appellant adopts counsel's statements regarding the nature of the proceeding, nature of the judgment, jurisdiction, and timeliness.

ADDITIONAL STATEMENT OF THE CASE AND FACTS

On May 13, 2025, before jury selection, defense counsel moved to withdraw because of a breakdown in the attorney-client relationship. Tr 32-34. The state objected. Tr 32-34. The court stated that the timing created the impression that defendant was trying to delay trial, then went off the record for an ex parte discussion with defense counsel. Tr 33-34. When proceedings resumed, the transcript states that the audio recording begins mid-sentence. Tr 35. No full ruling or reasoning was placed on the record before trial proceeded. Tr 35-36.

Before trial, defense also moved in limine to exclude prior-theft evidence relating to Ashle Penn. Tr 50-54. The court stated that the state could not go too far afield, but might be allowed to present some prior-incident evidence for context. Tr 54.

During the state's case, Sara Fillis testified: "I noticed an individual walk-in that we had previously reported for other thefts." Tr 152-153. Defense objected. Tr 153. The court overruled the objection. Tr 153.

Later, Fillis denied telling deputies that the September 18 suspect was the same person involved the night before. Tr 184-186. Deputy Rambin then testified that he

was initially told that the September 17 and September 18 suspects were the same person and that Fillis was the source of that information. Tr 197-198.

At sentencing, defendant told the court that he believed there was a conflict involving the Metropolitan Public Defender's Office, that he did not know whether he had been able to make informed decisions in the case, and that he believed he had been prejudiced. Tr 295-296.

ASSIGNMENT OF ERROR 1

The circuit court erred by denying defense counsel's motion to withdraw and requiring trial to proceed after conducting the decisive discussion off the record and without preserving an adequate on-record ruling for appellate review.

PRESERVATION AND STANDARD OF REVIEW

The issue was preserved when defense counsel moved to withdraw before trial because of a breakdown in the attorney-client relationship. Tr 32-34. Review is for abuse of discretion. *State v. Langley*, 314 Or 247, 257-58, 839 P2d 692 (1992), adhered to on recons, 318 Or 28, 861 P2d 1012 (1993). When a defendant seeks substitute appointed counsel, the court must inquire into the request on the record and determine its merits. *State v. Grcich*, 148 Or App 337, 342, 939 P2d 649 (1997).

ASSIGNMENT OF ERROR 2

The circuit court erred by overruling defendant's objection when the state elicited prior-theft evidence after the court had limited that subject in limine.

PRESERVATION AND STANDARD OF REVIEW

The issue was preserved by the motion in limine and the contemporaneous objection when Fillis testified that the individual had been previously reported for other thefts. Tr 50-54, 152-153. Review is for legal error and, to the extent the ruling rested on balancing prejudice and probative value, abuse of discretion.

ARGUMENT

Counsel's opening brief addresses the mistrial ruling. This supplement addresses two earlier rulings that preceded it.

Under Grcich, when a defendant seeks substitute appointed counsel, the trial court must inquire into the request on the record and determine its merits. 148 Or App at 342. That did not occur here. This record does not permit meaningful review of the ruling. It does not show what facts the court found, whether it found a genuine breakdown, whether it considered substitution or continuance, or why it concluded that trial should proceed immediately. Although the court could protect confidential communications, it still was required to preserve enough of its ruling to permit appellate review. The later sentencing colloquy confirms that the conflict concern was not minor. Tr 295-296. On this record, requiring defendant to proceed to trial was error. Nor can the state show the error was harmless from this record,

because the off-record process makes it impossible to determine whether the ruling affected the conduct of the trial that followed.

On the second issue, the court had already addressed prior-incident evidence in limine. Tr 50-54. Defense sought exclusion because Penn's alleged prior thefts risked unfair prejudice by association. Tr 50-52. The court did not impose a categorical exclusion. Instead, it stated that the state could present a limited amount of prior-incident evidence to provide context for Penn's voicemail, so long as it did not go too far afield. Tr 54. Even so, during the state's direct examination, before the voicemail was played for the jury, the jury heard that the person who entered the store had been "previously reported for other thefts." Tr 152-153. That was not contextual use tied to the voicemail. It was the same type of association and propensity evidence the motion sought to exclude.

The risk of prejudice was substantial. This case already involved confusion over whether Penn had been correctly linked to a prior Target incident. Fillis denied telling deputies that the September 18 suspect was the same person from the night before, but Rambin testified that Fillis had been the source of that initial identification. Tr 184-186, 197-198. In that setting, allowing the jury to hear that the person had previously been reported for other thefts invited the jury to reason from prior suspicion and association rather than from proof tied to the charged incident. No limiting instruction was given.

The error also was not harmless. Defendant's theory was that he lacked knowledge of Penn's intent. Prior-theft evidence bearing on suspicion and association went directly to the inference the jury had to draw about shared intent and knowledge. Reversal and remand are required.

CONCLUSION

In addition to the reasons stated in counsel's opening brief, the judgment should be reversed and the case remanded for a new trial.

DATED: _____, 2026.

Respectfully submitted,

Barry Trenell Washington, Pro Se

**COMBINED CERTIFICATE OF COMPLIANCE WITH ORAP 5.92, TYPE
SIZE, FILING, AND SERVICE**

Page-limit compliance

I certify that this supplemental pro se brief complies with ORAP 5.92 because the statement of the case, including the statement of facts, and the argument together do not exceed five pages.

Type size

I certify that the size of the type in this brief is not smaller than 14 point for both the text of the brief and footnotes.

Filing

I certify that I filed, or caused to be filed, this corrected supplemental pro se brief with the Appellate Court Administrator on this date.

Service

I certify that service of a copy of this corrected supplemental pro se brief was accomplished on the following participants in this case on this date by [appellate eFiling / U.S. Mail / other permitted service]:

Paul L. Smith, Solicitor General, 1162 Court Street NE, Suite 400, Salem, Oregon 97301-4096.

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DATED: _____, 2026.

Barry Trenell Washington, Pro Se